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Provision of February 22, 2024
Register of provisions
No. 130 of February 22, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code on the protection of personal data
(legislative decree June 30, 2003, No. 196), as
amended by legislative decree August 10, 2018, No. 101, containing
provisions for the adaptation of the national
legal system to the aforementioned Regulation (hereinafter
"Code");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Regulation of
the Guarantor No. 1/2000;

REPORTING Attorney Guido Scorza;

1. THE REPORT OF THE INTERESTED PARTY REGARDING THE EXERCISE OF THEIR RIGHTS AND THE RELATED INQUIRY.

A notifier contacted this Office on January 27,
2022, reiterating and specifying a previous
communication dated April 7, 2021, concerning Coop
Italia Società Cooperativa (hereinafter also referred to as "Company" or "Coop Italia"). In particular, the
notifier represented that:

- a) on December 10, 2021, as a customer,
he had written, via email, to Coop
Italia (specifically regarding the "CoopVoce" service) to oppose the processing for promotional
purposes and to know what personal data
the Company held;
- b) on December 17, 2021, the Company had sent him
a communication, also via email, stating that it had
registered his refusal to promotional communications;
- c) therefore, on December 20, 2021, he had
reiterated his request for access to his personal
data and for their deletion, which, as far as on file, remained unanswered;
- d) the Company continued to send him promotional
messages via SMS, thus showing that it had not
followed up on his opposition.

The Office, on April 15, 2022, initiated a preliminary inquiry regarding this matter, formulating a request for information and documentary elements, to which the Company responded only on December 27, 2022, stating that the requests of the interested party “due to a mere and entirely exceptional internal mishap ... were considered fulfilled ..., but in reality were not correctly processed.” Furthermore, the Company admitted to having sent two additional promotional SMS (even after the opposition to the processing), specifying that it had proceeded with the deletion according to “standard procedure” of the interested party’s data “within the legal terms,” retaining only those mandatory by law and had offered the same interested party, due to the occurrence of the “mishap,” a promotional bonus.

On May 5, 2022, the notifier – to whom the request of the Office and the Company’s response were addressed for appropriate knowledge - contested the merits of Coop’s response, also highlighting that he had not given any consent for promotional purposes.

2. THE INQUIRY ACTIVITY.

2.1. Request for information and inspection checks.

In addition to the specific report, within the framework of the more general activity of monitoring marketing and profiling activities, an inspection was carried out on April 4-6, 2023, at the Company. The Company then sent a note on May 4, to clarify the reservations contained in the inspection reports and provided a response - with notes dated July 24 and 28 - to the request for additional information and documentation, sent by this Authority on July 4, 2023.

In light of the elements overall acquired, including the registration procedures on the Company’s websites, the following critical issues emerged, particularly regarding the Coopvoce service; the collection of images and other personal data during holidays and events; as well as the collection of data on social platforms. These critical issues were reported in the act of initiation of the administrative procedure and contestation of administrative violations dated December 1, 2023, prot. No.

1742054, notified to Coop Italia on the same date via certified email, which must be understood as fully referenced and reproduced here.

2.2. The processing of personal data related to the use of e-sims.

With reference to paragraph A) of the contestation, regarding the processing of personal data related to the use of telephone lines via e-sim, it was found that – in addition to the aforementioned failure to respect

the right of opposition of the interested party - the Company processes such data “including traffic data and/or telematic data and internet browsing and/or location and/or geolocation (obtained

via GPS and/or services or functionalities on location and/or with identification of mobile phones and antennas including wi-fi and/or postal code and/or city name), with the prior “specific” consent of the interested party:

1. “point b.i), ... for purposes related to research of audio and video will be stored for a period not exceeding 5 years from the date of the event, after which they will be deleted or made anonymous, unless further consent is obtained from the Interested Party for their continued use.

2.4. The processing of personal data collected during “surveys and market research”.

With reference to paragraph C) of the contestation, it was noted that: “The data collected during surveys and market research may include personal information such as demographic data, preferences, and opinions of the Interested Party. 2. Purpose and legal basis of the processing 2.1 The data provided by the Interested Party will be processed for the purpose of conducting market research and analysis to improve services and products offered by COOPItalia. The legal basis for this processing is the legitimate interest of the data controller in understanding customer needs and preferences. 3. Data retention period: The data collected for market research purposes will be retained for a maximum period of 3 years, after which it will be deleted or anonymized.”

3. Rights of the Interested Party.

The Interested Party has the right to request access to their personal data, rectification, erasure, restriction of processing, and data portability. They also have the right to object to the processing of their data and to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal. Requests can be made to the data controller at the contact details provided in the privacy policy.

4. Changes to the Privacy Policy.

COOPItalia reserves the right to modify this Privacy Policy at any time. Any changes will be communicated to the Interested Party through appropriate means, and the updated policy will be made available on the official website.

5. Contact Information.

For any questions or requests regarding the processing of personal data, the Interested Party can contact COOPItalia at the following address: [insert contact details].

This document is intended to ensure transparency and compliance with applicable data protection laws, including the General Data Protection Regulation (GDPR) and national legislation on the protection of personal data.

****audio and video will be stored in the archives of the Data Controller, in relation to their possible use for the purposes indicated, for a period of five years.****

Furthermore, from the analysis of the “informative poster for video and photo events” (attached 2 to the aforementioned response of July 28, 2023), it has emerged that, according to the statements made by the Company: “The photographs and videos in question concern trade fair activities to be understood as public events; participation in the event implies consent to the processing unless otherwise denied. Only with specific consent may photographs and/or video recordings that directly and explicitly portray the data subject be published for promotional purposes on paper materials or electronic/digital channels (e.g., brochures, flyers, websites, social networks, etc.). In this latter case, the data subject may deny consent, thus making it impossible to process the data for such specific purposes. We remind you that, pursuant to Articles 15 and following of the GDPR, you may access such data at any time, view it, request its modification or deletion from our archives, file a complaint with the authority, or oppose its use, without prejudice to any dissemination not controllable by the Data Controller, by writing to the Data Controller at an email address of the Company.”

Regarding such processing, it has been noted that the provision of a time - albeit maximum - of 5 years for the retention of the data in question is excessive in relation to the purposes indicated in the aforementioned letters a) and b) - namely those of marketing and, even more so, those of mere

feedback to the data subjects or social caring - also considering the considerable amount of data collected and processed.

Moreover, reference must be made to the provisions of the general measure of February 24, 2005, 'Fidelity card' and guarantees for consumers. The rules of the Guarantor for loyalty programs - [doc. web no. 1103045], according to which - without prejudice to the validity of consent, if originally collected correctly, for promotional and profiling purposes - the retention of the details of the personal data of the data subject may be carried out, respectively, for a maximum period of 24 months and 12 months.

****2.4. The processing of personal data collected through social platforms.****

With reference to paragraph C) of the complaint, from the reading of the text of the "Privacy Policy on Social Networks," the following has emerged.

In addition to Facebook, "CoopItalia Soc. Coop. also has accounts on other social networks, namely:

- Instagram - to consult the relevant Privacy (link) and Cookie (link) regulations;
- Twitter - to consult the relevant Privacy (link) and Cookie (link) regulations;
- YouTube - to consult the relevant Privacy (link) and Cookie (link) regulations;
- Linkedin ... This privacy notice is intended for any social page of CoopItalia

1. Type of personal data subject to processing - ...; identifiers, contact details (phone, email), images and audio-video recordings, any personal data of users/visitors deducible from posts on social media (e.g., personal data such as name and surname, images/videos depicting them, etc.) and related statistical data (e.g., FB Insights).

2. Purposes and legal basis of processing - ... a) to carry out brand awareness, engagement, and lead generation campaigns on social channels for commercial, promotional, and institutional purposes (posts of images and videos, ads, promos, etc.); ... b) to respond to any requests from users/visitors of social pages (posts, comments, as well as requests for contact and/or assistance, so-called "social caring") ... The direct publication of posts and content by users-visitors on the social pages managed by CoopItalia Soc. Coop. (as per letter b) will be considered as free and specific consent of the Data Subjects. ... 4. Data retention times - images (photos and audio-video recordings) will be stored in the archives of CoopItalia Soc. Coop., in relation to their possible use for the indicated purposes, for a maximum period of 5 years ...".

In the complaint, it was noted that - while admitting that there is no general obligation to acquire specific consent for all cases of video recording/photographic activity and any subsequent publication - the indication regarding the data retention period (as per the aforementioned point 5) lacks the criteria used to establish it and, moreover - considering the type of data (the image of the person, rather than their contact details) - is excessive in relation to the promotional/advertising purpose of the Company, given that in this case, an activity of data dissemination is carried out, which is decidedly invasive of the personal sphere of the data subjects.

****2.5. Conclusions and notification of the alleged violations pursuant to Article 166, paragraph 5, of the Code.****

Overall, the following violations have been identified with the aforementioned complaint of December 1, 2023:

- with reference to paragraph A) of the complaint: Article 15, concerning the right of access of the data subject, also through Article 12, paragraph 3, of the Regulation, which imposes a response to requests made "without undue delay and, in any case, at the latest, within a maximum period of 30 days from receipt" of the same; as well as Article 21, paragraph 2, of the Regulation, which guarantees the right to object, "at any time," to the processing of data for promotional purposes;
- still with reference to the aforementioned paragraph A): Article 6 of the Regulation and Article 130 of the Code, and, more generally, the principles of lawfulness and fairness, of which...

into a narrative of continuity and tradition that translates into a celebration of the various editions carried out through videos, books, posters, brochures, etc.

4. CONCLUSIONS AND REQUESTS.

4.1. In light of the above, the Company respectfully requests that the Authority take into account the

measures already implemented to improve internal procedures and the clarifications provided regarding the processing of personal data.

4.2. The Company also requests that the Authority consider the isolated nature of the initial complaint and the subsequent actions taken to address the issues raised.

4.3. Finally, Coop Italia reaffirms its commitment to comply with all applicable regulations and to protect the rights of its customers.

5. ATTACHMENTS.

5.1. Attachment 1: Email correspondence from CoopVoce Customer Service dated December 17, 2021.

5.2. Attachment 2: Letters sent by Coop Italia on May 4 and May 18, 2022.

5.3. Attachment 3: Evidence of log registration related to the consent of the data subject.

This concludes the defense memorandum submitted by Coop Italia.

trust and recognizability of the Members and Customers of Coop. "

Furthermore, their retention occurs based on waivers signed by the interested parties, which also include civil obligations (right of image, use pursuant to Articles 10 and 320 of the Civil Code, and Articles 96 and 97 of Law 633/1941). Therefore, the established retention period also reflects these obligations and is not necessarily aligned with the time limits provided for the retention of data for promotional purposes.

The above represents the "justification" for the determination of such a retention period.

3.1.4. The processing of personal data collected through social platforms.

Coop Italia clarified that it does not proceed with "the direct acquisition of personal data from users of social networks for storage in its systems, or in any case for processing through platforms integrated into those of the relevant social network, except in very specific contexts, such as responding to requests for information and assistance, managed by the Customer Care office, and the evaluation of any complaints, as all other activities (for example, the publication of commercial content, reporting and sharing of posts even from users who follow the social pages of Coop Italia) are confined to the exclusive ownership of the relevant social network, according to the rules of the platforms themselves." According to the Company, "the five-year retention of assistance requests, complaints, etc. is calibrated to the need that Coop Italia has to demonstrate that it has fully executed the requests of customers/users, as well as to manage any complaints coming from such channels: this, in essence, represents the 'justification' for the determination of such a retention period..."

3.1.5. The quantification criteria referred to in Article 83, paragraph 2, of the Regulation.

In this regard, Coop stated, among other things, that:

- the case of the reporting party was an opportunity to verify and refine its internal procedures for managing requests for the exercise of rights by the interested parties;
- from the first request for information and during the inspection, it provided the widest cooperation;
- there are no specific corrective measures already adopted by the Authority with reference to the specific violation contested;
- "CoopVoce is recognized for the high quality of customer service and has received significant appreciation from consumers... (also) with respect to the regulations on the protection of personal data; CoopVoce operates in a highly competitive market characterized by reduced profit margins (see attachment no. 6 'CoopVoce and the mobile telephony market'); '... it has also had to face significant investments to free itself from Telecom Italia and take on first the direct management of data traffic and, from 2023, also the management of the voice component'; with reference to the last decade, '... the operating income of CoopVoce has remained substantially constant at the levels of 2014 in the face of... especially a growth in technological costs of over six (6) times and in the presence of significant investments related to infrastructure (transition to Full-MVNO and development of VoLTE technology) (see attachment 6 'CoopVoce and the mobile telephony market' p. 3); ... the pandemic and the consequent effect on physical stores, from which CoopVoce derives most of its customers, has resulted in a significant reduction in the flow of new customers, despite a significant increase in advertising costs, which more than tripled during the period."

3.2. The hearing of the Company.

On February 6, 2024, the Company - reiterating what has already been partially represented during the inspection and through the defense memorandum - confirmed the measures already adopted in relation to the complaints received, emphasizing its broad willingness to implement what is further established by this Authority and representing the following:

In particular, the Company, with reference to the only report in question, noted that the interested party has not presented further complaints since May 2022. More generally, the procedure for managing the rights of the interested parties has been carefully reviewed and restructured, in order to ensure greater uniformity and guarantee a close timing (about 2 weeks or at most within 30 days); in particular, the interested party receives an instant email assuring them of the receipt and prompt response, also thanks to the exact tracking of the request in our systems (see attached prospectus: attachment no. 1); moreover, since February 2023, a new dedicated PEC address Coopvoce has been created to channel requests from interested parties, in addition to the ordinary email address; both addresses are present on the coopvoce website. Furthermore, the Company highlighted that:

- 1) the cooponline site (non-food products) has been closed due to lack of customers;
- 2) it referred to the losses and the negative trend that has affected the Company since 2021, as noted in the 2024 memorandum;
- 3) regarding the issue of data retention of images collected and stored for the time - generally set at 5 years - it attached specific authorization forms (one for adults; one for minors, entrusted to parents or other guardians with express clauses regarding the transfer of the right of image pursuant to Article 10 of the Civil Code and the law on...

****Copyright (attachments 2 and 3);****

- 4) is in the process of putting online increasingly clear and simple privacy information that is easily accessible, assisted by figurative icons, in accordance with the EDPB Guidelines on transparent information;
- 5) with reference to the communication of data, including traffic data, to third parties, it has specified that these are companies within the Coop group that receive such data in their systems; however, promotional communications are sent directly by Coop Italia using the available contact data; in any case, these are specific initiatives, as clarified in the memorandum;
- 6) with particular reference to the data of users and customers collected through social platforms, the Company, in response to the indication contained in the complaint received from the Authority, has changed the retention period, reducing it from 5 years to 6 months.

****4. LEGAL ASSESSMENTS OF THE AUTHORITY.****

****4.1. Exercise of rights under Articles 15-22 of the Regulation.****

While acknowledging the non-systematic nature of the violation that concerns, as per the documents, only one interested party, it must still be highlighted, considering the relevance of the right to object to processing for marketing purposes, which—if not channeled into the correct paths of proper processing—results in a violation of the right to personal data protection and the rights of the person connected to it. Therefore, the hypothesized violation of Articles 6; 12, par. 3; 15; 21, par. 2, of the Regulation, as well as Article 130 of the Code, must be confirmed. The Authority, in consideration of the above and the asserted revision of the procedures related to the exercise of rights by the interested parties, does not believe it needs to adopt corrective measures in this regard.

****4.2. The processing of personal data related to the use of e-sims.****

In light of the varied multitude of data collected within the Coopvoce service, and in particular "the data of telephone and/or telematic traffic and internet navigation and/or position and/or geolocation (obtained via GPS and/or services or functionalities on location and/or with identification of mobile phones and antennas including Wi-Fi and/or postal code and/or city name)," Coop has, however, represented in the memorandum that "The collection and use of such data... occurs... primarily, to fulfill the contractual obligations undertaken by Coop Italia towards its customers for the provision of telephony and data communication services... Coop Italia, in using the data for direct marketing, specifically relies only on the personal information (first name and surname) and contact data (email and SMS) provided by the interested party, in compliance with the consents granted."

It is therefore deemed necessary to archive the observations made in the complaint regarding the violation of Article 6, par. 1, lett. a), of the Regulation and not to impose any corrective measures in this regard.

From a different perspective, despite what Coop has argued, the concept of marketing cannot be expanded to include also the specific statistical and economic analysis activities, which are structurally different from promotional activities. In this regard, it is not valid to refer to the 2013 Guidelines for two significant reasons: the Authority, in the 2013 Guidelines referenced by the Company, referred only to the purposes typified by Article 130, paragraph 1, of the Code, namely "those of sending advertising material, direct sales, conducting market research, and commercial communication [...]" believing that only "the aforementioned activities—and not additional purposes, such as those of economic and statistical analysis—are functionally, in most cases, aimed at pursuing a single (broadly speaking) marketing purpose, with the consequence that the related processing appears to justify—generally—the acquisition of a single consent." A non-specific consent is not free as it results in a coercion of the will of the interested party, consequently violating the principles of fairness of processing and the freedom of expression of consent (a principle already established by Article 23 of the previous Code). Each purpose of processing, different from contractual, administrative, and accounting (e.g., profiling, marketing, etc.), requires free, specific, informed, and distinct consent for each of them (Article 6, par. 1, lett. a, of the Regulation). This capacity for self-determination is not ensured when consent is collected indiscriminately to pursue distinct purposes, each of which could be pursued individually in the presence of an autonomous evaluation and determination by the interested party. This orientation finds full and constant correspondence also in the measures of this Authority and has been confirmed even after the full operation of the Regulation (see provision of June 12, 2019, web document no. 9115; provision of January 15, 2020, web document no. 9256486); the Regulation has further strengthened the principle of consent, along with its requirements of freedom, specificity, and, additionally, unequivocality (see: Articles 5, par. 1, lett. a, and 7, par. 4; and in particular Recital 32, but also Recitals 39, 40, 42, and 43).

Based on the overall outcomes of the investigation conducted, it is possible to include such statistical and economic activities within profiling, with respect to which, according to the statements made, they are positioned in terms of strict and direct...

the absence of previous violations and therefore of a history of non-compliance (lett. d).

In light of the above considerations, it is deemed appropriate to impose a monetary administrative sanction on Coop Italia, taking into account both the aggravating and mitigating circumstances identified.

7. FINAL PROVISIONS.

This decision is subject to appeal in accordance with the applicable laws and regulations. The parties involved have the right to present their observations and to contest the findings within the time limits set forth by law.

The undersigned authority hereby orders the implementation of the corrective measure as specified above and the application of the monetary administrative sanction as determined.

Date: [Insert Date]

Authority: [Insert Name of the Authority]

Signature: [Insert Signature]

Title: [Insert Title]

Official Seal: [Insert Seal]

****Previous corrective and sanctioning measures****

(letter e);

4. the constant and fruitful collaboration with this Authority (letter f);

5. the significant economic losses "and the negative trend that has affected the Company since 2021," as mentioned in the defense memorandum and the hearing minutes (letter k).

Based on the overall elements mentioned above, applying the referenced principles of effectiveness, proportionality, and deterrence as per Article 83, paragraph 1, of the Regulation, also considering the

necessary balance between the rights of the parties involved and the freedom of enterprise, in order to limit the economic impact of the sanction on the organizational, functional, and employment needs of the Company, it is deemed appropriate to apply to Coop Italia – taking into account precedents in terms, an administrative sanction of a payment of €90,000.00, equal to 0.31% of the maximum penalty.

It is noted that, pursuant to Article 170 of the Code, anyone who, being obliged, does not comply with this prohibition on processing is punishable by imprisonment from three months to two years and that, in case of non-compliance with the same provision, the sanction referred to in Article 83, paragraph 5, letter e), of the Regulation is also applied administratively.

In the case at hand, it is also deemed appropriate to apply the accessory sanction of publication on the Garante's website of this provision, as provided for by Article 166, paragraph 7, of the Code and Article 16 of the Garante's Regulation No. 1/2019, taking into account the sensitivity of the subject matter under investigation (processing of traffic data and retention periods of data collected through social platforms) as well as the need for non-discrimination with respect to similar cases (see: provision of June 8, 2023, web doc No. 9909907; provision of July 18, 2023, cited).

Finally, the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Garante, for the annotation of the violations identified here in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, are met.

****ALL OF THE ABOVE CONSIDERED, THE GARANTE****

a) pursuant to Article 57, paragraph 1, letter f), of the Regulation, declares unlawful, in the terms set out in the reasoning, the processing carried out by Coop Italia Società Cooperativa, with registered office at Via del Lavoro, 6-8, Casalecchio Reno (Bologna), VAT No. 01515921201; and, consequently, against the same:

b) pursuant to Article 58, paragraph 2, letter d), orders the modification of the consent acquisition formula for marketing activities, removing the reference to "statistical and economic activities";

c) pursuant to Article 157 of the Code, orders to communicate to the Authority, within 30 days from the notification of this provision, the initiatives undertaken to implement the imposed measures; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

****ORDERS****

pursuant to Article 58, paragraph 2, letter i), of the Regulation, Coop Italia Società Cooperativa, represented by its legal representative, to pay the sum of €90,000 (ninety thousand/00), as an administrative pecuniary sanction for the violations indicated in the reasoning; it is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

****ORDERS****

the aforementioned Company, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €90,000 (ninety thousand/00), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

****DISPOSES****

as an accessory sanction, pursuant to Article 166, paragraph 7, of the Code and Article 16 of the Garante's Regulation No. 1/2019, the publication on the Garante's website of this provision and, pursuant to Article 17 of the Garante's Regulation No. 1/2019, the annotation in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be made to the ordinary judicial authority, with an application filed with the ordinary court of the place where the

data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of the provision itself, or sixty days if the applicant resides abroad.

Rome, February 22, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei